

PETITIONER: RESPONDENT:	CASE NUMBER:
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PROPERTY ORDER ATTACHMENT TO JUDGMENT

1. Division of community property assets

- a. ☐ There are no community property assets.
- b. ☐ The court finds that the net value of the community estate is less than \$5,000 and that the ☐ petitioner ☐ respondent cannot be found. Under Family Code section 2604, the entire community estate is awarded to the ☐ petitioner ☐ respondent.
- c. ☐ The petitioner will receive the following assets: ☐ [See Attachment 1c.](#)
- d. ☐ The respondent will receive the following assets: ☐ [See Attachment 1d.](#)
- e. The ☐ petitioner ☐ respondent will be responsible for preparing and filing a *Qualified Domestic Relations Order* (QDRO) to divide the following plan or retirement account(s) (*specify*):

The fee for preparation of the QDRO will be shared as follows:

- f. ☐ Other orders:
- g. ☐ Each spouse or domestic partner will receive the assets listed above as sole and separate property. The parties must execute any and all documents required to carry out this division.

2. Division of community property debts

- a. ☐ There are no community property debts.
- b. ☐ All community debts have been paid by the ☐ petitioner ☐ respondent.
The ☐ petitioner ☐ respondent must reimburse the other party: \$
The payment plan is as follows:
- c. ☐ The petitioner
- (1) is assigned the debts listed below;
 - (2) is solely responsible for paying the debts listed below; and
 - (3) will not hold the respondent legally responsible for the debts listed below.
- ☐ [See attachment 2c.](#)

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2. d. ☐ The respondent

- (1) is assigned the debts listed below;
- (2) is solely responsible for paying the debts listed below; and
- (3) will not hold the petitioner legally responsible for the debts listed below.

☐ [See attachment 2d.](#)

e. **Notice regarding division of community property (items c. and d.):**

Creditors are not bound by this judgment. If a creditor seeks payment from the party who is not listed as responsible for the debt, that party can file a *Request for Order* (form FL-300) to seek reimbursement from the party who was assigned the debt.

f. The court reserves jurisdiction to divide any community debts not listed here and to enforce the terms of this judgment. This enforcement may include ordering a defaulting party to reimburse the other party for failing to follow the terms of this judgment.

g. ☐ Other orders:

3. ☐ **Equalization of division of property and debt orders.** To equalize the division of the community property assets and debts, the ☐ petitioner ☐ respondent must pay to the other the sum of: \$, payable as follows:

4. **Separate property**

a. ☐ The court confirms the following assets or debts as the sole separate property, or sole responsibility, of the petitioner:

b. ☐ The court confirms the following assets or debts as the sole separate property, or sole responsibility, of the respondent:

5. ☐ The settlement agreement between the parties dated: is attached and made a part of this judgment.

6. ☐ **Sale of property.** The following property will be offered for sale and sold for the fair market value as soon as a willing buyer can be found, and the net proceeds from the sale will be ☐ divided equally ☐ other (*specify*):

7. ☐ Other orders (*specify*):